# MEMORANDUM

# of

# AGREEMENT

BETWEEN

THE POLYTECHNIC UNIVERSITY OF THE PHILIPPINES

AND

NAME OF PARTNER INSTITUTION

2025

**AGREEMENT ON FACULTY EXCHANGE PROGRAM BETWEEN POLYTECHNIC UNIVERSITY OF THE PHILIPPINES, THE PHILIPPINES AND _____**

This Memorandum of Agreement (MOA) is entered into by and between: **Polytechnic University of the Philippines ("PUP")**, a state institution of higher learning established on October 1904, with principal office at A. Mabini Campus, Sta. Mesa, Manila, Philippines, represented herein by its University President, **Dr. Manuel M. Muhi**, herein referred as "**PUP**,"

and

_____, a private/public institution of higher learning in _____, located at_____ represented herein by its _____ for _____, **Mx.**_____, hereinafter referred to as the "___"

Both parties, recognizing the importance of academic cooperation and the exchange of knowledge and expertise, have agreed to collaborate on a **Faculty Exchange Program** under the following terms and conditions:

**ARTICLE 1: PURPOSE**

This agreement establishes a cooperative relationship between the Polytechnic University of the Philippines ("**PUP**") and _____ for faculty exchange program. The goal is to facilitate professional development, academic collaboration, and international academic exchange, specifically in the field of _____*(if any specific programs).*

**ARTICLE 2: DEFINITIONS**

2.1 In this agreement, unless the content shall otherwise imply, "exchange" shall mean an exchange of faculty member/s from each institution. "Exchange faculty" shall mean a faculty member with teaching responsibilities participating in the exchange implemented herein.

2.2 "Home institution" shall mean the university of which an exchange faculty is on faculty and "host institution" shall mean the university that has agreed to receive an exchange faculty from the home institution.

**ARTICLE 3: DURATION**

The academic year at the "PUP" shall commence in September and conclude in June of the following year. At _____, the academic year shall be defined as beginning in [Month, Year] and ending in [Month, Year]. The host institution shall determine the duration of the academic (year/semester/session/program), depending on the categorization of the invitation; the faculty exchange programs shall be categorized as follows: (a) a short-term faculty exchange program, which shall have a duration ranging from less than one week to two weeks of lectures; and (b) a long-term faculty exchange program, which shall extend from three weeks up to three months, depending on the invitation and shall be subject to the host institution's applicable rules and regulations and the host country's applicable laws.

**ARTICLE 4: Number and Period of Appointment**

Faculty exchange program will occur on a one-for-one basis. The one-for-one basis shall be deemed satisfied by equal numbers of participating faculty from each university over a period of five consecutive years. Each university may nominate up to **three faculty members** per application period. Furthermore, the HOST university reserves the right to determine the final number of exchange faculty it will accept in any term, semester, or academic year based on current balance and future exchange prospects in accordance with applicable law. The absence of exchange during any one academic year does not nullify this Agreement.

**ARTICLE 5: Faculty Exchange Coordination**

Each institution will appoint an exchange coordinator (see below designated person/office) responsible for receiving and screening applications for exchanges, orientation for departing and incoming faculty, and general program administration. The Host Institution coordinator will provide assistance and information related to housing, in-country transportation, health insurance, and related concerns where possible.

**ARTICLE 6: Exchange Faculty**

6.1. The Host Institution will submit an invitation to the home university for the faculty exchange program application/nomination. The Home university will present a list of faculty members application/nomination for participation in the Program for the upcoming academic (year/ semester/ session/ program). The Host Institution reserves the right to approve such faculty. The Host Institution will confirm the final list of Exchange Faculty no later than (3) months before the start of the academic (year/semester/session/program).

6.2. Exchange Faculty will be lecturer of the Home Institution and will be compensated by the Home Institution. Host Institution must provide information about the exchange faculty program inclusions and exclusions (see article 7)

6.3. Exchange Faculty will be fully qualified in all respects according to the standards of the Home Institution.

6.4. The Home Institution will submit faculty credentials to the Host Institution prior to the beginning of each exchange. The Host institution must submit a detailed schedule program/workloads during the exchange program. The schedule program/workloads must be approved by the sector head of the home institution.

6.5. Exchange Faculty will be subject to the policies, rules and regulations of the Host Institution.

**ARTICLE 7: Financial Obligations**

7.1. The host institution accepting a visiting faculty assumes no financial responsibilities. This includes employment, compensation, travel, transportation, local subsistence, health insurance, lodging and other expenses incidental to the visit related to instruction unless specifically offered in the letter of invitation. In the absence of an offer letter covering these costs, they will be assumed by the home institution or the visiting faculty. All visiting faculty & their dependents must comply with mandatory medical insurance coverage as required by the policy of the host institution.

7.2 The home institution will be responsible for paying the salary and benefits of exchange faculty members. The host institution bears no responsibility for providing

funds to visiting faculty for any purpose other than those provided to its own faculty to support teaching, e.g., photocopying, telephone, and computer support. Except for stated in the invitation; exchange faculty will be eligible for the usual faculty privileges by the host institution.

**ARTICLE 8: Indemnification and Liability**

8.1. Indemnification and Liability Both institutions agree to indemnify each other from claims or damages arising from the execution of this agreement, except in cases of negligence or willful misconduct. Each institution is responsible for personal injuries, damages, or losses incurred by its faculty members, unless caused by the other party's negligence or intentional actions.

8.2. Travel Insurance and Accidents Both institutions will ensure that participating faculty have adequate travel insurance, including health, accident, and personal liability coverage. The Home University will assist in treatment or evacuation costs, if applicable.

8.3. Force Majeure Neither party will be liable for failure to perform obligations due to events beyond reasonable control (e.g., natural disasters, war, civil unrest, government regulations). Both parties will cooperate to reschedule or take alternative measures to minimize disruption.

8.4. Limitations of Liability for direct damages is limited to the amount contributed by the responsible institution. Neither institution is liable for indirect, incidental, or consequential damages.

**ARTICLE 9: Confidentiality**

Both institutions agree to maintain confidentiality regarding sensitive academic information, intellectual property, and other materials shared during the exchange program. Confidential information will not be disclosed to third parties without written consent, unless required by law or necessary for the execution of this agreement.

**ARTICLE 10: Miscellaneous Provisions**

10.1. Governing Law and Compliance This Agreement will be governed by the laws of the Republic of the Philippines and the Republic of _____. Both institutions agree to comply with relevant local laws regarding visas, work permits, and other legal requirements for faculty participants.

10.2. Dispute and Conflict Resolution Disputes will be referred first to the University Legal Counsel (ULCO) of PUP for consultation and negotiation. Further legal remedies may be pursued under Philippine or _____ law, as applicable.

**ARTICLE 11: Extension, Amendment or Termination of the Agreement**

This agreement will be effective upon its mutual signing and remain in effect for a period of five (5) years. Renewal may be negotiated during the final year of the agreement. In the event that the agreement is not renewed, any research or related activities in progress at the time of termination of this agreement will continue until the agreed scope of work for the Research related activities have been completed. This agreement may be terminated by any party at the end of any academic year upon

ninety (90) day written notice to all other Parties to the agreement. This agreement may be amended or extended by mutual agreement of the Parties. Official Language All communications and documentation related to this agreement shall be conducted in English.

**Designated Office/Contact Person:**

1. For the Polytechnic University of the Philippines (PUP)
   Name: Ms. Felicitas C. Trinidad
   Position: Director, Office of International Affairs
   Contact Information:
   - Phone: (+63 2) 5335-1PUP (5335-1787) or (+63 2) 5335-1777 loc. 622
   - Email: fctrinidad@pup.edu.ph

2. For the _____
   Name: _____
   Position: _____
   Contact Information:
   - Phone: T: _____
   - Email: _____

IN WITNESS WHERE OF, the parties have set their signatures hereunder on the date and place first above written.

| | |
|---|---|
| POLYTECHNIC UNIVERSITY OF THE PHILIPPINES | NAME OF THE INSTITUTION |
| By: | By: |
| DR. EMANUEL C. DE GUZMAN<br>Vice President for Academic Affairs | _____<br>Position |

SIGNED IN THE PRESENCE OF:

| | |
|---|---|
| _____ | _____ |
| Name<br>Position/Designation | Name<br>Position/Designation |

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES
CITY OF) S.S.

_____

BEFORE ME, a Notary Public, for and in the city _____ of personally appeared:

Proof of Identity

DR. EMANUEL C. DE GUZMAN

_____

NAME

_____

known to me to be the same persons who executed this instrument and acknowledged the same as their free and voluntary act and deed, and of the entities they respectively represent.

This document consists of three (___) pages including the page where this Acknowledgment is written, and the parties and their instrumental witnesses signed at the right margin of each and every page hereof.

WITNESS MY HAND AND SEAL on _____ _____, this day of 2025 in the Philippines.

_____

NOTARY PUBLIC

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Book No.:
Series of 2025.